

HOUSE No. 1077

The Commonwealth of Massachusetts

PRESENTED BY:

James C. Arena-DeRosa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to protecting homeowners after a property fire.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>1/15/2025</i>

HOUSE No. 1077

By Representative Arena-DeRosa of Holliston, a petition (accompanied by bill, House, No. 1077) of James C. Arena-DeRosa relative to fire investigations. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to protecting homeowners after a property fire.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 148 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after section 33 the following section:-

3 Section 33A. (a) The marshal, the department, the division or municipal officials
4 including, but not limited to, police, fire and building officials shall prohibit any and all public
5 insurance adjusters, contractors and restoration companies from engaging in any solicitation or
6 inspection or any physical presence on the premises under investigation until 24 hours after
7 either: (i) the city, town or municipal fire department; or (ii) the marshal, the department or the
8 division releases control of the premises back to its legal owner or occupant, unless the public
9 insurance adjuster, contractor or restoration company is accompanied by, or acting with,
10 permission of the premises' legal owner.

11 (b) Any public insurance adjuster, contractor or restoration company in violation of this
12 provision shall be subject to a civil penalty of \$1,000 for each violation and may be subject to

- 13 revocation of their license by the commissioner of insurance pursuant to section 172 of chapter
- 14 175.